

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2024CLPA032872: ASPIRE GENERAL INSURANCE vs PETRA POLVO

09/01/2026 in Department 42

Motion to Enforce Settlement Agreement and Enter Judgment Against Defendant Petra Polvo

Tentative Ruling:

In 2025, this case settled by way of a Stipulation for Entry of Judgment and Installment Payments, whereby entry of judgment was stayed and Defendant agreed to make installment payments to Plaintiff.

Upon the failure of Defendant to make the installment payments, Plaintiff is entitled to seek judgment from the court in the amount of \$4107.00 plus interest at the rate of five percent per annum on the principal sum from April 30, 2024, minus amounts paid, plus court costs.

Plaintiff has established that Defendant has failed to make installment payments such that Plaintiff is entitled to judgment. Plaintiff has set forth evidence showing that Defendant owes an unpaid balance of \$1887.00, and Plaintiff calculates interest on the principal sum from April 30, 2024 through July 13, 2026 to arrive at an interest award of \$452.33. The stipulation does not state that interest will accrue through the date enforcement efforts are undertaken, but the court finds this to be a reasonable interpretation.

The Court grants the motion and will sign the judgment, providing that Plaintiff, ASPIRE GENERAL INSURANCE COMPANY, a corporation, recover from Defendant, PETRA POLVO, the principal sum of \$4,107.00, plus interest thereon at the rate of five percent (5%) per annum from April 30, 2024 through July 13, 2026, in the amount of \$452.33, less a credit of \$2,220.00 for all payments received prior to default, together with court costs of \$304.00, for a total Judgment of \$2,643.33.

The reference to post-judgment interest shall be stricken from the proposed judgment.

Plaintiff to give notice.